Notification Waiver Determination

Black Kite Partners led consortium – DR2

Acquisition	Black Kite Warehouse Pty Ltd, Black Kite Magellan Services Pty Ltd, MA Asset Management Ltd, HGPS-DPE Luxembourg Holdings SCSp, Galileo HoldCo Pty Ltd, Galileo BidCo Pty Ltd, and MAAM GP Pty Ltd applied for a notification waiver in respect of the proposed acquisition of 100% of the share capital in DR2 Holdings Pty Ltd (**DR2**) by a consortium including Black Kite Partners Pty Ltd (**Black Kite**), HarbourVest Global Private Solution SICAV S.A. (**HarbourVest**) and MA Financial Group Limited (**MA Financial**), as described in the transaction documents provided as part of the application (the **Acquisition**).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the *Competition and Consumer Act 2010* (Cth) that the Acquisition is not required to be notified.
Date of determination	28 July 2026

Parties to the Acquisition	The acquirers, Black Kite, HarbourVest and MA Financial, are private capital investors. The target, DR2, is the holding company of businesses primarily involved in the supply of telehealth and face-to-face consultations. Its bulk-billed after-hours consultations are completed through approved medical deputising services, National Home Doctor Service Pty Ltd (trading as 13Sick) and Doctorsquare Pty Ltd (trading as DoctorDoctor). Its in-hours (daytime) consultations are completed through 24-7Medcare and are either bulk-billed or privately paid. DR2 also conducts a surgical assistant placement service through Australia Surgical Assisting. Relevantly, HarbourVest has a minority interest in HotDoc, a provider of healthcare booking management software and telehealth services.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the **ACCC**) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is a small horizontal overlap between parties in the supply of telehealth services in Australia

	b. there are alternative suppliers of telehealth services in Australia c. there is a low risk of foreclosure or other concerning vertical or conglomerate effects resulting from exclusionary conduct, bundling or tying of telehealth services in Australia post-acquisition. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act